

Mam Chand v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 June 2014 · Criminal Misc. Writ Petition No. 10381 of 2014
· **Writ disposed of; s.135 FIR not quashed; compounding under Supply Code left open.**

HEADNOTE

A writ to quash an FIR under Section 135 of the Electricity Act, 2003 was refused where the FIR prima facie disclosed a cognizable offence. The petitioner was left to seek compounding, if any, under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Mam Chand sought quashing of FIR dated 5 May 2014, Case Crime No. 71 of 2014, registered under Section 135 of the Electricity Act, 2003 at Police Station Bargaon, District Saharanpur. He argued that no Section 135 offence was made out and that the offence was in any event compoundable. The State and the complainant opposed quashing, asserting that an offence had been committed and that compounding was governed by the U.P. Electricity Supply Code, 2005, which the petitioner should invoke.

HOLDING-UNITS

INTERPLAY · EA2003::135

s.135 FIR — quash versus compounding under Supply Code

HOLDING

Where an FIR under Section 135 of the Electricity Act, 2003 prima facie discloses a cognizable offence, the High Court will not quash it in writ jurisdiction. Compounding, if sought, is to be pursued under the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy A writ to quash an FIR under Section 135 of the Electricity Act, 2003 was refused where the FIR prima facie disclosed a cognizable offence. The petitioner was left to seek compounding, if any, under the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER COMPOUNDING SHOULD BE GRANTED UNDER THE SUPPLY CODE

The Court only recorded that the petitioner may invoke the Supply Code remedy; it did not decide compounding on the merits. ¶ 1